

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maria Simeone	Team: Team # 6	CCRB Case #: 200604463	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 04/07/2006 1:15 AM	Location of Incident: Between Harmon and Myrtle Avenues	Precinct: 83	18 Mo. SOL 10/7/2007	EO SOL 10/7/2007	
Date/Time CV Reported Mon, 04/10/2006 8:45 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/10/2006 8:45 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kirk Fernandes	12216	934850	083 PCT
2. POM Ronald Perez	31175	930943	083 PCT
3. SGT John Zegilla	02254	916953	083 PCT
4. POM Harjit Singh	30582	929177	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT John Zegilla	Force: Sgt. John Zegilla used physical force against § 87(2)(b)	
B.POM Kirk Fernandes	Force: PO Kirk Fernandes used physical force against § 87(2)(b)	
C.POM Kirk Fernandes	Force: PO Kirk Fernandes used physical force against § 87(2)(b)	
D.POM Ronald Perez	Force: PO Ronald Perez used physical force against § 87(2)(b)	
E.POM Harjit Singh	Force: PO Harjit Singh used physical force against § 87(2)(b)	
F.SGT John Zegilla	Force: Sgt. John Zegilla used physical force against § 87(2)(b)	
G.POM Kirk Fernandes	Force: PO Kirk Fernandes used physical force against § 87(2)(b)	

Synopsis

On April 7, 2006, § 87(2)(b), § 87(2)(b) and § 87(2)(b) were at § 87(2)(b) Bar on Harmon and Myrtle Avenues in Brooklyn when Sgt. John Zegilla, PO Ronald Perez, PO Kirk Fernandes and PO Harijt Singh arrived at the location to conduct State Liquor Authority (SLA) inspections. After finding numerous violations it was determined that the bar would close early for the evening and patrons sent home. § 87(2)(b) alleged that she had been sober that evening and was prepared to take a cab home once she moved her vehicle to a better parking spot and approached PO Perez and Sgt. Zegilla requesting permission to do so before leaving the location, which she claimed they granted. As § 87(2)(b) was moving her vehicle, occupied by § 87(2)(b), § 87(2)(b) and some of her other friends, the officers pulled her over and instructed her that she would have to take a breathalyzer test. § 87(2)(b) went to the rear of the vehicle to take the test and after multiple attempts the mechanism still failed to yield results. Sgt Zegilla and PO Fernandes forcibly handcuffed § 87(2)(b) and arrested her for drunken driving (Allegations A and B). When § 87(2)(b) refused to exit § 87(2)(b)'s vehicle which was to be vouchered pursuant to her arrest, he was placed under arrest and PO Fernandes, PO Peres and PO Singh used physical force against him (Allegations C-E). § 87(2)(b) interfered with § 87(2)(b)'s arrest and PO Fernandes and Sgt. Zegilla forcibly arrested him as well (Allegations F-G).

§ 87(2)(g)

Summary of Complaint

CCRB Complaint Response Unit

§ 87(2)(b) filed this complaint with the CCRB via telephone on April 10, 2006 (Enc. 8A-C). On April 7, 2006 she went to § 87(2)(b) bar with some friends. Her friends were drinking and at least one became intoxicated and § 87(2)(b) was only drinking wine coolers. At approximately 1:15AM two police vans filled with officers entered the bar, checking the patrons' identification to make sure they were of legal age to consume alcohol. After they were finished, the officers did not leave immediately and the bar owner decided that he wanted to close the bar because the officers were not leaving. One of § 87(2)(b)'s intoxicated female friends began arguing with the officers and § 87(2)(b) and another friend calmed her down. § 87(2)(b) believed that the officers were going to try to get them on drunken driving charges since they were not able to get "something" inside the bar. She wanted to move her vehicle from an open area to a more discrete area so that it would not get stolen and then take a taxi home. She asked an officer for permission and the officer said she could move her car. § 87(2)(b) moved her vehicle ten feet when the officer sounded his siren and pulled her over for driving while drinking. The officer denied that he gave her permission to move the vehicle and then asked her to take a breathalyzer test. § 87(2)(b) took the test five times with negative results. The officer claimed that she was not blowing right. § 87(2)(b) then said, "...you want to take my breath and blow for me?" Four male officers then took § 87(2)(b) and slammed her on the truck to handcuff her. Two of her friends, § 87(2)(b), § 87(2)(b) and § 87(2)(b) asked the officers why they were doing that and then got arrested. Officers threw § 87(2)(b), § 87(2)(b) on the ground causing him to sustain a "hole" in his face, and § 87(2)(b) was thrown against a wall. § 87(2)(b) described PO1 as a tall white male, about 6'1"- 6'2" tall, medium build with grayish blond hair and glasses. PO2 was a 5'6" tall- 5'7" tall man with a heavy build and black hair. PO3 was a 5'5" tall, Hispanic man with a heavy build, black hair and a "pudgy," thick nose. PO4 was a 6'0" tall man with a medium build and black hair.

§ 87(2)(b) CCRB Statement

§ 87(2)(b) testified at the CCRB on April 14, 2006 (Enc. 9A-E). § 87(2)(b) is a § 87(2)(b), 5'6" tall, 170 pound, unemployed black female.

On April 7, 2006, at about 11:45 PM, § 87(2)(b) who was the designated driver for the evening, drove § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) to § 87(2)(b) on § 87(2)(b) in Brooklyn, in her 1993 Ford Explorer. § 87(2)(b) parked on the corner of § 87(2)(b) and § 87(2)(b). She brought wine coolers into the bar since she did not want to drink alcohol and drank five wine coolers while at § 87(2)(b). The owner and bartender, § 87(2)(b) held the wine coolers behind the bar and served them to § 87(2)(b) who has been a patron of the bar about six times in the past three years and knows the bartender.

At approximately 1:00AM § 87(2)(b) was seated at the bar watching television when she heard someone say “what” and noticed 25-30 uniformed male police officers enter § 87(2)(b). The officers asked all of the occupants to show valid identification to prove they were of legal age. § 87(2)(b) stated there were about 12 people in the bar and everyone was of legal age, however, the bar owner § 87(2)(b) decided to close for the evening. Some of the police officers left the bar, while about 10 lingered inside. § 87(2)(b) observed two white police vans, and recognized PO 1 as one of the officers that had responded to a burglary in her home a few years prior, but she did not know his name. § 87(2)(b) described PO 1, identified by the investigation as Officer Ronald Perez, as being a White or Hispanic man, 5’5”, heavy set, balding, round face, thick nose. PO2 was a white man, 6’0”, very slim, sandy brown hair round glasses and was identified by the investigation as Sergeant John Zegilla. PO 3, identified as Officer Kirk Fernandes, had a thick mustache and § 87(2)(b) recognized PO 4, identified as Officer Harjit Singh, as one of the officers who investigated the past burglary of § 87(2)(b)s vehicle. § 87(2)(b) and her friends went outside of the bar to leave and § 87(2)(b) called her son, § 87(2)(b) to tell him that she would pick him up from the babysitter. § 87(2)(b) was intoxicated and began to yell at the police officers because she was upset that she could not enjoy her evening while § 87(2)(b), § 87(2)(b) took § 87(2)(b), § 87(2)(b) down the block to calm her down and send her home. § 87(2)(b) did not know how § 87(2)(b) got home.

§ 87(2)(b) believed that since she had been in the bar, the police would not believe her that she had not been drinking, and would have stopped her had she attempted to drive home. Therefore, she decided to move her truck to another parking space that was less exposed because it had been stolen once before and she was worried that it would be again if left in the original parking spot. She described the parking spot as an open area that yelled, “come get me” to thieves. § 87(2)(b) approached PO Perez and Sgt. Zegilla for permission to move her truck and informed him that she would be taking a cab home. The officer granted her permission and § 87(2)(b) and her friends all entered the vehicle. § 87(2)(b) described her friends as being extremely intoxicated and unable to walk the 30 feet to the next street corner where § 87(2)(b) intended to hail a cab. § 87(2)(b) did not inform the officers that her friends would be in the vehicle while she moved her car to another spot because they were too drunk to walk the entire distance to the bus stop and the second parking spot was closer. § 87(2)(b) started the car and drove about ten feet before the same officer pulled behind § 87(2)(b) in a patrol car and signaled her to stop with his lights and sirens. § 87(2)(b) pulled over to the side of the road and parked her car legally. PO Perez approached her and instructed her to get out of her car and go to the back of her truck, which she did. The other occupants remained in the vehicle, one of which was passed out drunk, until the police verbally instructed everyone to exit.

PO Perez, Sgt. Zegilla and PO Fernandes grabbed § 87(2)(b) by her arms and held her against the back of her truck while instructing her to blow into a Breathalyzer to see if she was intoxicated. § 87(2)(b) performed the test five times, each time the apparatus did not yield any results. § 87(2)(b) believed this was because she was not drunk, not that the machine could have been broken or that she was performing the test improperly. The officer who conducted the test became agitated and told her that she was not blowing correctly. § 87(2)(b) asked him, “would you like to take my breath for me and do it?” Sgt. Zegilla grabbed § 87(2)(b) by her by her arms and banged her against hood of the police van so that the front of her body made contact with the vehicle. PO Fernandes punched § 87(2)(b) in the back of her arms. § 87(2)(b) was very calm.

§ 87(2)(b), § 87(2)(b) and § 87(2)(b) saw what was happening and began to yell at the officers to stop hurting § 87(2)(b) and that she ‘gave them what they wanted,’ meaning blown into the Breathalyzer. The officers grabbed § 87(2)(b) and threw him on to the ground and handcuffed him. § 87(2)(b) sustained a circular laceration on his cheek. Officers threw § 87(2)(b) against a brick wall and then on the ground and handcuffed him. During this time § 87(2)(b) was still up against the back of the truck but had turned her head in the direction where § 87(2)(b) and § 87(2)(b) were being handcuffed and was able to see what was occurring but could not provide details of how many officers were involved or their physical descriptions. There were two officers restraining § 87(2)(b) three restraining § 87(2)(b) four restraining § 87(2)(b) and the additional officers were involved with § 87(2)(b) and § 87(2)(b) who had become upset and were yelling. After § 87(2)(b) and § 87(2)(b) were handcuffed, the officers that were restraining § 87(2)(b) rear handcuffed her as well and all three were placed inside of

a patrol car and transported to the 83rd Precinct by PO 5, who was a white male, 5'5" short hair, no facial hair, slim/medium build, in a patrol van.

When § 87(2)(b) entered the precinct, her phone rang and it was her son calling to find out where she was. § 87(2)(b) answered the phone and told her son that she was not going to be able to pick him up because she had a problem when an officer grabbed the phone from her hand and told her son that his mommy was going to go to jail and 'we're coming to get you.' § 87(2)(b) did not know which officer did this. Another officer informed § 87(2)(b) that her license was going to be suspended and her car impounded. § 87(2)(b) was handcuffed to a bench near the holding cell and § 87(2)(b) and § 87(2)(b) were placed inside of the holding cell. § 87(2)(b) and § 87(2)(b) did not request medical attention, but § 87(2)(b) believed that § 87(2)(b) had when he was initially injured. At the precinct officers cleaned the wound but § 87(2)(b) did not want to go to the hospital.

§ 87(2)(b) was transported to the 78th Precinct at about 2am to take another Breathalyzer and was placed in side of a holding cell. § 87(2)(b) took the Breathalyzer test, which then read .02. § 87(2)(b) was instructed to walk in a line while touching her nose, which she did. § 87(2)(b) was placed back in side of the holding cell for another four hours before being transported back to the 83rd Precinct. When § 87(2)(b) was released she had her son take pictures of the bruising on her arms and laceration on § 87(2)(b)'s face ('9A-C).

Results of Investigation

§ 87(2)(b) CCRB Statement

§ 87(2)(b) testified at the CCRB on May 2, 2006 (Enc. A-C). § 87(2)(b) is a 6'0" tall, 180 pound young black man.

On April 8, 2006, § 87(2)(b) was at § 87(2)(b) bar with § 87(2)(b) and five-six of her friends who he did not know. § 87(2)(b) has known § 87(2)(b) for three years. § 87(2)(b) drove the group to the bar and parked across the street. There were about four other people in the bar. § 87(2)(b) had consumed two to three alcoholic beverages and was tipsy but not drunk. § 87(2)(b) had been drinking wine coolers and was not drunk either. The bouncer notified the bar patrons that the police were there and § 87(2)(b) noticed about nine white male officers and one Hispanic female officers enter the bar. All of the officers were in uniform. § 87(2)(b) recalled a bald male officer and a tall, white man with wire framed glasses and a large head. The officers requested the bar patrons show identification and § 87(2)(b) complied. One of § 87(2)(b)'s friends began to scream "don't touch me! Get your fucking hands off me" § 87(2)(b) did not see anything because his back was turned to her. The police shut down the bar and told everyone to leave. The officers exited the bar and waited outside while the patrons exited. The agitated female continued to be boisterous and create a commotion while § 87(2)(b) was trying to calm her down. § 87(2)(b) and the group he was with exited the bar to enter § 87(2)(b)'s vehicle and leave. § 87(2)(b) did not witness § 87(2)(b) say anything to any of the officers before entering her vehicle. § 87(2)(b) was in the drivers' seat, § 87(2)(b) was in the rear seat and there were three or four other people. § 87(2)(b) stated that only two of the people in the car were intoxicated and everyone else, including § 87(2)(b) was sober.

§ 87(2)(b) drove a few feet when § 87(2)(b) saw police lights and heard a siren. § 87(2)(b) pulled over to the side of the road. Officers approached the vehicle and § 87(2)(b) was instructed to exit. She did and walked to the rear of her vehicle where she had been standing for a short period of time when § 87(2)(b) saw a "commotion." § 87(2)(b) did not have a clear visual of what was occurring because of the bright lights of the police vehicle behind § 87(2)(b)'s car but stated that something, that he could not describe what, caught his attention. He remained in the vehicle until the officers told everyone to exit the car. § 87(2)(b) exited and one of § 87(2)(b)'s friends, identified as § 87(2)(b) § 87(2)(b) questioned the officers and was "going off at the mouth." § 87(2)(b) could not recall specifics of what the man was saying but that it was going to get them all "in trouble." § 87(2)(b) tried to quiet § 87(2)(b) and "talk to him man to man." When that did not work, § 87(2)(b) pushed him up against a nearby wall when the police got involved physically and grabbed § 87(2)(b) arm who was then handcuffed. Officers grabbed § 87(2)(b) and swung him to the ground and he cut his cheek. § 87(2)(b) witnessed an officer turn

§ 87(2)(b) so that he was lying on his stomach, get on top of him and handcuff him. § 87(2)(b) requested medical attention, which he received. § 87(2)(b) did not know where § 87(2)(b) was.

§ 87(2)(b) was placed inside of a van. The only officer that § 87(2)(b) could recall was a tall man with glasses. § 87(2)(b) was placed in the holding cell with § 87(2)(b) and three-four other men. § 87(2)(b) was handcuffed to a nearby bench. § 87(2)(b) was arrested for resisting arrest.

Attempts to Contact Additional Victims

On March 26, 2006, the investigator contacted § 87(2)(b) and scheduled for him to be interviewed regarding this complaint on May 2, 2006. On May 2, 2006, § 87(2)(b) failed to appear at the CCRB and missed his appointment. On June 2, 2006, a call was placed to § 87(2)(b) and message was left. Throughout the month of August, 2006, § 87(2)(b) was contacted via telephone and he stated that he would call back to schedule an appointment to testified, however, failed to do so. From August 9, 2006 to September 27, 2006, six subsequent telephone calls were placed to § 87(2)(b) and each time messages were left. To date § 87(2)(b) has not contacted the CCRB and CTS does not indicate that he has filed any additional complaints regarding this incident.

PO Kirk Fernandes: Subject Officer

Officer Kirk Fernandes is a § 87(2)(b) old, 5'6" tall, 160 pound Hispanic man. On April 7, 2007 PO Fernandes worked from 6:00p.m. to 2:35a.m. in conditions with PO Ronald Perez. PO Fernandes was dressed in uniform and assigned to marked patrol vehicle 2716. PO Fernandes read all relevant memo book entries. He prepared the vehicle voucher for § 87(2)(b)'s car pursuant to her arrest for drunk driving. He prepared the medical treatment of prisoner form for § 87(2)(b) which stated that he received an abrasion to the right side of his face while resisting arrest and that § 87(2)(b) refused medical aid at the command. BADS states that § 87(2)(b) was observed driving a vehicle. PO Fernandez conducted a car stop at which time he observed her eyes to be blood shot and odor of alcohol on her breath. She failed the field test that was conducted three times and then became combative. Force was used to restrain and control § 87(2)(b) (Enc. 12A-K).

On April 8, 2006, at 1:00 a.m. PO Fernandes and PO Perez conducted a State Liquor Authority (SLA) inspection at a bar located on 1449 Myrtle Avenue in Brooklyn. PO Fernandes and PO Perez were the only two officers to enter the bar. There were 10-12 people in the bar. PO Fernandes observed numerous SLA violations. PO Fernandes was inside of the bar for 30 minutes, during which time he observed a black female 5'4" tall, 180-220 pounds, identified later through her arrest as § 87(2)(b) consuming beverages contained in clear glass cups. PO Fernandes did not know what was inside of the cups but assumed it was alcoholic since she appeared to be in a very joyful, calm manner and had blood shot eyes. PO Fernandes could smell alcohol in the establishment. PO Fernandes and PO Perez closed the bar due to (SLA) violations and all of the patrols were instructed to leave the premise. PO Fernandes did not have any verbal interaction with § 87(2)(b).

PO Fernandes and PO Perez exited the bar and entered the patrol vehicle. The patrol vehicle remained parked on Myrtle Avenue and Harmon Avenue. PO Fernandes observed § 87(2)(b) operating a Ford SUV on Myrtle Avenue. She turned left onto Harmon Avenue. PO Fernandes verbalized to PO Perez that he had seen § 87(2)(b) consuming alcohol inside of the bar and approximated that he had been observing § 87(2)(b) drive for eight to nine car lengths. PO Fernandes did not recall § 87(2)(b) ever approaching him prior to entering her vehicle and requesting permission to park her vehicle in a more secure parking spot. PO Fernandes pulled the patrol vehicle behind § 87(2)(b)'s vehicle and used lights and sirens to signal for § 87(2)(b) to pull over which she complied with. There were two additional males in § 87(2)(b)'s vehicle. § 87(2)(b) exited her vehicle on her own and walked towards the rear of her vehicle and stood in the space between the rear of her vehicle and front of the patrol vehicle. PO Fernandes stood with his back to the patrol vehicle facing § 87(2)(b) and PO Perez was to his left also facing § 87(2)(b). § 87(2)(b) consented to a Breathalyzer, which PO Fernandes administered. § 87(2)(b) did not complete the Breathalyzer and breathe properly into the tool. § 87(2)(b) was not blowing long enough for the instrument to register anything. § 87(2)(b) was given three opportunities to complete the test and failed to do so. § 87(2)(b) became combative. PO Fernandes described § 87(2)(b) as being intoxicated and very argumentative. § 87(2)(b) raised her arms in a fighting stance with her hands in fists and lunged at PO

Fernandes. PO Fernandes stepped back thwarting her attempt to strike him. PO Fernandes and PO Perez grabbed § 87(2)(b)'s arms and handcuffed her. § 87(2)(b) continued to resist and flailed her arms. PO Fernandes stated that the bare minimum force was used to handcuff her. § 87(2)(b) was never pushed up against a vehicle, or punched. § 87(2)(b) never complained of any injury. While § 87(2)(b) was being handcuffed, a black man, 5'9"-6'2" tall with short hair exited § 87(2)(b)'s vehicle and was told to step aside and he re-entered § 87(2)(b)'s vehicle.

After § 87(2)(b) was handcuffed PO Fernandes approached the two males seated inside of § 87(2)(b)'s vehicle and instructed them to exit § 87(2)(b). One of the men, identified as § 87(2)(b), § 87(2)(b) complied while the other, § 87(2)(b), § 87(2)(b) who was intoxicated, refused to exit. PO Fernandes explained the situation again and reiterated that § 87(2)(b) had to exit the car. § 87(2)(b) was so intoxicated that PO Fernandes had to assist him to exit the vehicle, but § 87(2)(b) was so intoxicated that he fell on the ground and sustained a bruise to the left cheek. § 87(2)(b) was arrested § 87(2)(b). While PO Fernandes was arresting § 87(2)(b), § 87(2)(b) interfered and placed his body in between § 87(2)(b) and PO Fernandes. PO Fernandes moved § 87(2)(b) aside by grabbing his arm and escorting him to the side so that § 87(2)(b) could be handcuffed. § 87(2)(b) was handcuffed and § 87(2)(b) was subsequently arrested. PO Fernandes never pushed § 87(2)(b) or § 87(2)(b) up against a brick wall. PO Fernandes described the force as "very minimum."

PO Fernandes stated that there were no other police officers present at any time during the incident. PO Fernandes could not recall who transported the civilians but that he did not transport all three individuals and females are transported separately from males. PO Fernandes stated that a call was placed to request an additional unit to assist in transporting the civilians to the precinct. PO Fernandes did not recall whom he transported.

PO Fernandes was the arresting officer for § 87(2)(b), § 87(2)(b) and § 87(2)(b). At 2:55 a.m. PO Fernandes transported § 87(2)(b) to the 70th Precinct for her to receive a blood alcohol test and her BAC was .102, which was over the legal limit. PO Fernandes had never seen § 87(2)(b) prior to this incident. PO Fernandes did not know how § 87(2)(b)'s vehicle was brought to the precinct. § 87(2)(b)'s truck was vouchered § 87(2)(b) and held at the station house until the vehicle impound unit "dealt with it." § 87(2)(b) was charged § 87(2)(b).

PO Ronald Perez

Officer Ronald Perez testified at the CCRB on June 27, 2006. He is a § 87(2)(b) old, 6'3" tall, 235 pound Hispanic man with brown hair and brown eyes. On April 6, 2006 he worked in uniform from 6:00 p.m. to 2:35 a.m. on April 7, 2006 with PO Kirk Fernandes, PO Harjit Singh and Sgt. John Zegilla in an unmarked van. He did not have any entries in his memo book regarding the incident (Enc. 13A-E).

PO Perez recalled that he and his partners had gone to the incident location to conduct SLA inspections. There were approximately 100 patrons inside of the bar. Upon issuing several summonses to the bar owner for various violations it was determined by Sgt. Zegilla that the bar would be shut down for the evening and patrons sent home. The officers remained on the scene for about 10-15 minutes to ensure that the bar owner complied with lawful order and that the patrons actually left. While waiting, PO Perez observed two black females who by the nature of their behavior appeared to be highly intoxicated. The women were slurring their speech as they yelled at each other and staggering as they attempted to walk. PO Perez had never seen either female prior to this encounter. After all of the patrons exited the bar the officers got into their vehicle and drove away. PO Perez could not recall why they had left the location and if it was permanently. PO Perez stopped at a stop sign on Wilson Avenue at the intersection with Harmon Avenue, when he observed one of the two females that he had seen intoxicated at the bar, identified as § 87(2)(b) driving a vehicle that was approaching the RMP. The block is very well lit and PO Perez was therefore able to see who was operating the vehicle. He could not recall if he notified his partners about his observation but did recall that he activated the emergency lights, made a U-turn to follow § 87(2)(b) signaled over the loudspeaker for her to pull over. PO Perez parked the patrol van behind § 87(2)(b)'s vehicle and approached her on the driver's side while two officers approached the passenger side of the vehicle and one remained behind PO Perez. § 87(2)(b) had her window lowered and PO Perez asked her to turn off the

car. He could see that § 87(2)(b)'s eyes were bloodshot and watery and she smelled of alcohol. PO Perez told § 87(2)(b) that she was stopped because he had seen her intoxicated at the bar a few minutes earlier. PO Perez did not recall § 87(2)(b) ever indicating that she was just moving her vehicle to another parking spot. He asked her to exit her vehicle so that she could take an alcohol sensor test. § 87(2)(b) was belligerent and indignant about the situation. PO Perez could not recall specifically what § 87(2)(b) said but stated that her tone of voice indicated this. § 87(2)(b) walked with PO Perez toward the rear of her vehicle where PO Singh was with the alcohol sensor test. Sgt. Zegilla and PO Fernandes were also at the back of § 87(2)(b)'s vehicle and in close proximity. PO Perez stated that a person must properly blow into a straw at one end of the alcohol sensor apparatus which calculates the blood alcohol level. § 87(2)(b) had to be given the test three to four times because she was not complying with the directions properly. After § 87(2)(b) was given several opportunities to take the test she became "verbally abusive," threw her hands in the air in front of her face and took a step towards PO Singh who was standing directly in front of her, which PO Perez described as combative and threatening. PO Perez grabbed § 87(2)(b)'s left arm and pulled it behind her back while another officer grabbed her right arm. PO Perez stated that § 87(2)(b) was compliant and that no additional force was used, including placing her against any objects. Another officer asked § 87(2)(b) to enter the patrol van and sit down.

The officer then approached § 87(2)(b)'s vehicle and PO Perez and Sgt. Zegilla instructed everyone to exit. PO Perez specifically recalled two black males inside of the vehicle. Everyone exited the vehicle and it was explained to them that the car would be impounded pursuant to § 87(2)(b)'s arrest § 87(2)(b) and that they would have to exit it and find an alternate way home. One of the two males, identified by the investigation as § 87(2)(b) § 87(2)(b) who PO Perez described as being about 25-30 years old, 6'0" tall, became very upset and insisted that the police would have to drive him home. PO Perez informed § 87(2)(b) that there was a cab stand around the corner where he could hail a livery cab. § 87(2)(b) was also very intoxicated and re-entered the vehicle. He lit a cigarette and insisted that either the officers had to drive him home or he would take § 87(2)(b)'s vehicle. PO Perez repeated that § 87(2)(b) had to exit the vehicle and when § 87(2)(b) continued to refuse his orders, PO Perez informed him that he would be arrested. PO Perez stated that he had been assertive but calm. PO Perez placed his hand on § 87(2)(b)'s right wrist and told him to step out of the vehicle and he did. PO Perez described his action as being akin to hand holding. § 87(2)(b) was informed that he was going to be placed under arrest for obstruction of governmental administration because he was preventing them from seizing the vehicle. PO Perez and PO Singh escorted § 87(2)(b) a few steps over to a building wall. PO Perez told § 87(2)(b) that he was going to be "tossed" meaning frisked and asked if he had anything on him. § 87(2)(b) was not handcuffed and positioned facing the wall with his palms against it. He turned around abruptly and PO Perez hooked his arm through § 87(2)(b)'s arm to gain control of him and then § 87(2)(b) lunged off the wall at PO Perez. PO Singh was standing next to § 87(2)(b) and Sgt. Zegilla and PO Fernandes were standing off to the side by PO Singh. The second black man, identified through the investigation as § 87(2)(b) approached PO Perez and PO Singh who were restraining § 87(2)(b) and placed his arm in between the officers and § 87(2)(b). PO Perez took a few small steps backwards and then he, PO Singh and § 87(2)(b) fell to the ground. PO Perez landed on his back and § 87(2)(b) fell on his face, sustaining an abrasion to somewhere on his face. PO Perez was not injured by the fall and did not know how PO Singh fell or if he was injured. PO Perez grabbed § 87(2)(b)'s left arm and brought it behind his back and handcuffed him. § 87(2)(b) was resisting so PO Singh assisted PO Perez in bringing his right arm behind his back to secure the handcuffs. PO Perez looked over to where Sgt. Zegilla and PO Fernandes were standing and saw that they had § 87(2)(b) in handcuffs. PO Perez and PO Singh lifted § 87(2)(b) off the ground at which time PO Perez saw that additional officers had responded to the location but did not know what command they were from or how they were informed to respond. § 87(2)(b) and § 87(2)(b) were transported to the 83rd Precinct in a separate vehicle. PO Perez does not know by whom or in what vehicle. PO Perez, Sgt. Zegilla, PO Singh and PO Fernandes also went to the 83rd Precinct station house in the van they were assigned. PO Perez could not recall if they transported any civilians with them. PO Perez did not have any further contact with any of the civilians.

Sergeant John Zegilla

Sergeant John Zegilla testified at the CCRB on June 27, 2006. Sgt. Zegilla is a 6'3" tall, 230 pound white man. On April 7, 2006, Sgt. Zegilla worked 5:40p.m. to 2:37 a.m. dressed in uniform and assigned as the

conditions sergeant. Sgt. Zegilla was the operator of marked police van 5980 and partnered with PO Perez, PO Singh and PO Fernandes. Sgt. Zegilla did not have any entries in his memo book (Enc. 14A-C).

§ 87(2)(g)

He stated that PO Fernandes observed § 87(2)(b) intoxicated inside of the bar and then later driving a vehicle and informed Sgt. Zegilla to stop her. Sgt. Zegilla instructed § 87(2)(b) to pull over her vehicle and was the one to approach her and escorted her to the back of her vehicle. PO Singh told § 87(2)(b) that she would have to take an alcohol sensor test and how to complete it properly. PO Singh is trained on how to give the test and administered it three times, each time § 87(2)(b) failed to blow properly. § 87(2)(b) became agitated, verbally combative. Sgt. Zegilla could not recall anything specific that § 87(2)(b) said but that her voice was raised and confrontational. § 87(2)(b) and raised her hands above her head in a closed fist and “took a step forward” towards the officers. Sgt. Zegilla described § 87(2)(b) as somewhat resistant to being handcuffed.” Sgt. Zegilla restrained § 87(2)(b) s hands to assist in handcuffing her. Sgt. Zegilla could not recall if § 87(2)(b) s body had ever been forcibly placed against any objects while she was being handcuffed and stated that she had been standing on her own. § 87(2)(b) was handcuffed within seconds and placed inside of the patrol van.

It was determined that § 87(2)(b) would be arrested § 87(2)(b) and that her car would be forfeiture pursuant to her arrest. Sgt. Zegilla walked to § 87(2)(b) s vehicle and informed the passengers to exit. Once everyone was outside Sgt. Zegilla told them that the car would be forfeiture pursuant to § 87(2)(b) s § 87(2) and that they could hail a cab down the block. A black male, identified by the investigation as § 87(2)(b) § 87(2)(b) insisted that the officers drive him home and Sgt. Zegilla informed him that he could walk to the bus stop down the block and take the bus home. § 87(2)(b) then re-entered the vehicle, sat in the front passenger seat and lit a cigarette. § 87(2)(b) refused to exit the vehicle and Sgt. Zegilla authorized PO Perez and PO Singh to arrest him § 87(2)(b). Sgt. Zegilla placed his hand on § 87(2)(b) s arm to guide him out of the car without incident. PO Perez and PO Singh attempted to handcuff § 87(2)(b) when he assumed the fetal position, a second black male, identified by the arrest as § 87(2)(b) § 87(2)(b) interfered with the arrest and placed his arm in between § 87(2)(b) and the officers and tried to step between them. Sgt. Zegilla and PO Fernandes pulled § 87(2)(b) away from § 87(2)(b) and arrested him § 87(2)(b). § 87(2)(b) then adjusted his body into the fetal position causing PO Perez and PO Singh to fall to the ground. Sgt. Zegilla stated that § 87(2)(b) sustained a scrape from the fall but could not recall where the scrape was. A medical treatment of prisoner form was prepared for him, and would have denoted where he was injured. Sgt. Zegilla had been by the front passenger side of § 87(2)(b) s vehicle handcuffing a third individual who tried to interfere with § 87(2)(b) s arrest by placing his arm in between PO Fernandes and § 87(2)(b) § 87(2)(b). Sgt. Zegilla could not recall if § 87(2)(b) was ever placed against a wall.

A second patrol vehicle responded to the location to transport one of the three individuals under arrest. Sgt. Zegilla did not know who responded, what command they were from or how they were notified. He did not have any further contact with § 87(2)(b), § 87(2)(b), or § 87(2)(b) after they were removed from the incident location. Sgt. Zegilla could not recall is anyone requested medical attention.

PO Harjit Singh: Subject Officer

Officer Harjit Singh testified at the CCRB on June 27, 2006. He is a § 87(2)(b) old, Asian man. He worked in uniform with PO Perez, Sgt. John Zegilla and PO Kirk Fernandes from 6:00 p.m. on April 6, 2006 to 2:35 a.m. on April 7, 2006 in marked patrol van 5980. He did not have any entries in his memo book (Enc. 15A-D).

PO Singh stated that he and his partners went to § 87(2)(b) bar to conduct SLA inspections at which time they cited the owner for numerous violations and shut down the bar. The bar was crowded with numerous patrons and Sgt. Zegilla decided to instruct the bar owner to close for the night and send the patrons away. PO Singh stated that PO Fernandes saw § 87(2)(b) inside of the bar and highly intoxicated while they were conducting the SLA inspections. After the bar patrons exited the bar the officers entered their vehicle. PO Singh was seated in the back of the van while PO Perez drove the vehicle. While they were at the intersection of Myrtle and Harmon Avenues, PO Fernandes observed § 87(2)(b) operating an SUV. PO

Singh did not observe § 87(2)(b) at any point prior to when PO Fernandes saw her driving. PO Singh saw the vehicle but could not see the driver. He was unable to describe how the vehicle was being driven because he did not have a clear view due to his position in the van. PO Perez signaled for § 87(2)(b) to pull over with the RMP's lights and siren and § 87(2)(b) pulled over. The patrol van parked directly behind § 87(2)(b)'s vehicle and the officers exited and approached § 87(2)(b)'s vehicle. PO Perez or PO Fernandes approached § 87(2)(b) while PO Singh remained at the rear of § 87(2)(b)'s vehicle. He could not hear what took place. Shortly after being stopped, § 87(2)(b) exited her vehicle and walked to the area between the rear of her vehicle and the front of the patrol van. PO Singh asked § 87(2)(b) if she would consent to a breathalyzer test, which she did. PO Singh explained to § 87(2)(b) how to take the test properly, and after she failed to do it properly multiple times she became irate. PO Singh was standing in front of her and was in very close to her since he was holding the breathalyzer test. § 87(2)(b) raised her hand in the air in a combative and fighting manner, which PO Singh felt was a threat to his safety. PO Singh grabbed the hand that § 87(2)(b) had raised in the air and brought it behind her back to handcuff her. § 87(2)(b) was never placed against any objects and no additional force was necessary. PO Singh and another officer placed § 87(2)(b) inside of the patrol van. PO Singh did not have any interaction with § 87(2)(b) prior to administering the breathalyzer test and had no knowledge of § 87(2)(b) requesting permission to move her vehicle after the bar closed. He could not recall what the other civilians who were occupants of § 87(2)(b)'s vehicle were doing or where they were located. He stated that at one point after § 87(2)(b) was handcuffed all of the civilian passengers were told to exit the vehicle. They all complied, however, there was a black man who was about 220 pounds who then re-entered the vehicle and sat in the driver's seat. PO Perez informed the man, identified as § 87(2)(b) § 87(2)(b) that he would have to exit the vehicle because it was going to be vouchered because § 87(2)(b) had been driving drunk. PO Singh and PO Perez escorted him to the sidewalk where he was placed against the wall so that they could frisk him. § 87(2)(b) was visibly intoxicated and abruptly swung around towards the officers when PO Perez grabbed his left arm to handcuff him and § 87(2)(b) PO Perez and PO Singh all fell to the ground as a result. § 87(2)(b) was on the ground in a fetal position. PO Perez grabbed § 87(2)(b)'s left hand and secured the handcuffs while PO Singh grabbed his right hand and brought it behind his back so that PO Perez place the handcuff on it. PO Singh then turned around saw PO Fernandes and Sgt. Zegilla handcuffing a second man behind him. PO Singh learned later that § 87(2)(b) scraped his cheek, which he received medical attention for. Multiple additional units from the 83rd Precinct and other commands arrived, but PO Singh did not know how they were notified and could not estimate how many or who arrived. § 87(2)(b) and § 87(2)(b) were transported to the station house in two different patrol vehicles and § 87(2)(b) was taken in the van the officers arrived in. He did not have any further contact with the civilians at the station house.

Police Documentation

The 83rd Precinct Roll Call lists PO Singh, PO Perez, PO Fernandes assigned to conditions with Sgt. Zegilla as their supervisor (16A-J).

The Command Log Entry lists § 87(2)(b), § 87(2)(b) and § 87(2)(b) as being intoxicated and § 87(2)(b)'s BAC was .102. It also noted that § 87(2)(b) had an observable abrasion on his face (18A-B).

CCRB History

§ 87(2)(b) has filed one other CCRB complaint § 87(2)(b) Sgt. Zegilla, PO Fernandes and PO Perez have never been disciplined pursuant to a CCRB investigation. PO Singh has been substantiated on allegations of an improper frisk and discourteous language in case 200400141 and received command disciplined A (Enc. 1A- 7A).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Identification of Officers

Officer Fernandes was identified as the arresting officer by all related arrest paperwork. The roll call listed him partnered with PO Perez, PO Singh and Sgt. Zegilla. § 87(2)(g)

Disputed and Undisputed Facts

§ 87(2)(g)

It is not disputed that § 87(2)(b) was pulled over, given a breathalyzer test which she failed to perform correctly and that Sgt. Zegilla and PO Fernandez used force to arrest her. It is also not disputed that PO Fernandez and Sgt. Zegilla used force to arrest § 87(2)(b) or that § 87(2)(b) was injured during his arrest.

Assessment of Evidence

§ 87(2)(b) stated that she brought a six pack of wine coolers to the bar for her to consume since she was the designated driver. § 87(2)(g)

§ 87(2)(g) Sgt. Zegilla, PO Perez and PO Fernandes all claimed to have made the initial observation of § 87(2)(b) driving, and been the officer to conduct the stop. PO Fernandes and PO Singh both claimed to have been the officer to administer the breathalyzer test and person that § 87(2)(b) attempted to strike. § 87(2)(g)

Allegation A: Sgt. John Zegilla used physical force against § 87(2)(b)

Allegation B: PO Kirk Fernandes used physical force against § 87(2)(b)

Allegation C: PO Kirk Fernandes used physical force against § 87(2)(b)

Allegation D: PO Ronald Perez used physical force against § 87(2)(b)

Allegation E: PO Harjit Singh used physical force against § 87(2)(b)

Allegation F: Sgt. John Zegilla used physical force against § 87(2)(b)

Allegation G: PO Kirk Fernandes used physical force against § 87(2)(b)

§ 87(2)(g)
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g)
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g)
[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g)
[Redacted]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: